

turn on a legal relationship between parties such as that of a subsidiary, affiliated company.

5.2.2 Cases in which the burden of proof was reversed

a) Inventive step – furnishing of tests

In T. 570/08 the opponents had filed evidence in the form of comparative tests with the aim to support their argument that the claimed additive composition in the patent-in-suit did not solve the problem of improving lubricity and solubility of a diesel fuel oil. These results were in contrast to the tests which the patent proprietor had provided, so that the board was confronted with a series of tests leading to contradictory results. Therefore the board could not share the patent proprietor's argument that the burden of proof rested with the opponents, since the opponents' test results cast doubts on the effect allegedly achieved by the present invention. The patent proprietor could not convincingly eliminate those doubts and the patent was revoked. By contrast, the board in T. 1621/16 was satisfied that the technical report submitted with the appellant's grounds of appeal had shifted the burden of proof to the opponents, who then had to demonstrate that the technical problem in question had not been solved. Applying the balance of probabilities, the board concluded that it was technically plausible that the subject-matter of the claim solved the problem. After examining the obviousness, it held that the requirements of Art. 56 EPC were met.

b) Non-disclosure agreement

In T. 473/13 the board considered the arguments and the supporting evidence (an affidavit by the project manager and inventor of the patent in suit) submitted by the respondent (patent proprietor) to be sufficient to discharge its initial burden of proving that there had been a confidentiality agreement. The burden of proof then shifted to the intervener, which had to establish that there had been no such confidentiality agreement. The intervener had, however, presented no arguments or evidence which objectively might cast doubt on the existence of a confidentiality agreement, but had merely presented speculation in this respect. The intervener did not try to contact the utility company V, with which the patent proprietor had a co-operation, to enquire of them whether they considered a confidentiality agreement to have been in place. The intervener also did not make enquiries of other organisations active in the technical field in order to address the question whether such confidentiality agreements represented normal practice. The board concluded that the public nature of the prior use was not proven, such that it did not form part of the prior art.

c) Sufficiency of disclosure

The burden of establishing insufficiency of disclosure generally lies with the opponent. When the patent does not give any information on how a feature of the invention can be put into practice, only a weak presumption exists that the invention is sufficiently disclosed. In such case, the opponent can discharge the burden of proof by plausibly arguing that common general knowledge would not enable the skilled person to put this feature into practice. The patent proprietor then bears the burden of establishing the contrary assertion

that common general knowledge would indeed enable the skilled person to carry out the invention (T. 63/06, summary of this case law in T. 347/15). In T. 338/10, citing this approach, the board held that the reasoned arguments submitted by the respondent (opponent) reversed the burden of proof, placing the onus on the appellant to show that the skilled person would have considered it likely that the claimed therapeutic effect was obtainable in the case in point, despite a lack of data and thus only a weak presumption. But since the appellant had not responded by submitting any arguments or evidence, the board held that the patent as granted did not comply with Art. 83 EPC (the principles applicable in the context of that article are recalled for example in T. 518/10, see chapter II.C.9.).

In T. 1889/15, in relation to Art. 83 EPC, the question arose as to how the burden of proof could be discharged by the opponent. The board in T. 63/06 had explained that there was a presumption of validity once a patent had been granted. The weight of submissions required to rebut this presumption depended on its strength. It had then distinguished between two cases. A "strong presumption" existed where the patent contained detailed information on how to put the invention into practice, including test results relating to a particular property. Detailed information or evidence, e.g. in the form of comparative tests, was then required to establish a lack of sufficiency (T. 63/06, section 3.3.1(a)). By contrast, a "weak presumption" applied where the patent did not contain detailed information. Then, less substantial submissions were required and it was adequate to raise serious doubts, e.g. by comprehensive and plausible arguments (T. 63/06, section 3.3.1(b)). In the case at issue in T. 1889/15, there existed a strong presumption of validity in respect of sufficiency of disclosure, and a commensurately high standard of proof was required from the respondent (opponent) to demonstrate that this was not the case, e.g. in the form of comparative tests showing that following the teaching of the patent did not make it possible to obtain reliably the defined ESCR index. However, beyond referring to two examples, which were defective, the respondent had not provided any detailed arguments, let alone verifiable evidence, e.g. in the form of experimental results, to demonstrate any deficiency in the disclosure.

d) Unusual parameters

In T. 131/03 the board pointed out that, once the opponent had established a strong presumption that unusual parameters as those used to define the claimed subject-matter were inherently disclosed in the prior art, the patent proprietor could not merely claim the benefit of the doubt. It was incumbent upon the patentee to establish the extent to which the parameters used in the definition of its invention actually distinguished the claimed subject-matter from the prior art (followed by T. 2732/16). See also T. 1452/16 (unusual parameters – alleged prior use – public availability of a product): as to the possibility for the patent proprietor to obtain samples and test them, the board stated that when testing samples manufactured after the priority date the legitimate question could arise of whether the results obtained were representative of the ratios present in the samples of the prior art. However, by using a parameter which had not been used in the prior art, the burden was on the patentee to prove that the prior art did not fall within the terms of the claim.

In T.1666/16, the appellant (opponent), relying on T.131/03 and T.740/01, argued that since the angle of repose (PVDF resin powder) was an unusual parameter in the context of PVDF resins, it would be legitimate to reverse the burden of proof and require the patent proprietor, who had chosen to rely on an unusual parameter as the sole distinguishing feature over the powder disclosed in example 4 of D1, to demonstrate that this parameter was not fulfilled by that powder in D1. The board decided that T.131/03 and T.740/01 were based on the same rationale, namely that when it had been established that there was a **strong presumption** that claimed subject-matter defined by an unusual parameter was inherently disclosed in the prior art, the patent proprietor could not merely claim the benefit of the doubt and had to demonstrate that the chosen parameter-based definition distinguished the claimed subject-matter from the prior art. In T.1666/16, however, the appellant had not failed to show that the unusual parameter was inherently disclosed in the prior art and there was therefore no justification for reversing the burden of proof.

e) Impact of a lack of information in the patent

In T.100/15, the board agreed with the patent proprietor's argument that the burden of establishing insufficiency of disclosure lay with the opponent in inter partes proceedings. However, when a patent did not give any information on how a feature of the invention could be put into practice (in this case, the controlled cooling), and the opponent had plausibly argued that common general knowledge would not enable the skilled person to do so, it was for the patent proprietor to demonstrate otherwise.

In T.1299/15, the board held that under established case law the opponent (in this case, the appellant) bore the burden of proving an alleged lack of reproducibility. However, since the patent specification did not describe any embodiment for the adjustment device, the appellant was unable to do so on the basis of such an example and instead could only base its case on attacking the device's **plausibility**, which was it then did. That shifted burden of proving the contrary to the patent proprietor (in this case the respondent).

f) Evidence where serious doubts drawn from the patent itself

In T.1846/10 the board observed that example 5 of the patent provided verifiable facts which raised **serious doubts** that the invention could in fact be carried out by the average person skilled in the art without undue experimentation or inventive skills by following the guidance provided in the patent. Under these circumstances, no additional experimental evidence from the appellant (opponent) was required as it could rely on the evidence provided by the patent itself. The board concluded that the appellant had discharged its burden of proof.

g) Disputing an experimental protocol

In T.792/00 the board found that if the patent contained only an example with a hypothetical experimental protocol, and if this example was to be relied on for showing sufficiency, then the burden of proving that this protocol worked in practice as stated lay with the patentee. Evidence that a variation of the protocol worked was unlikely to be enough. However, if the example contained a complete experimental protocol and the

patentee affirmed that the results reported had been obtained, a board was likely to accept that the patentee had done enough to shift the burden of proof to the opponent who would then have to provide a repeat of the experiment in order to convincingly demonstrate that the protocol did not, in fact, work as stated.

h) Common general knowledge of the skilled person

In T.2070/13, as to the burden of proof, serious doubts were set out concerning whether the skilled person's common general knowledge would be sufficient to enable him to carry out the invention. As a consequence, the burden of proof shifted to the patentee. The mere assumption that anti-adherence of the claimed groups of compounds was known, and the reference to post-published D16 referring to a particular bacterial non-adhesion, was not convincing evidence that could discharge the respondent (patentee) from its burden of proof.

i) Violation of the laws of physics

In T.967/09 the board was satisfied that opponent III had substantiated, by means of verifiable facts, serious doubts that the patent did not disclose the invention as defined in claim 1 in a manner sufficiently clear and complete for it to be carried out by the skilled person. These doubts were considered not to be convincingly rebutted by the appellant (patent proprietor). Accordingly, the board considered that respondent (opponent III) had discharged its burden of proof in this respect. Therefore the patent, in respect of the subject-matter of claim 1, was insufficiently disclosed. T.1842/06 sets out various evidential requirements under Art. 83 EPC, especially those applicable in ex parte proceedings. It states that if an examining division or board objects that the description's disclosure is insufficient, it bears the burden of proving that. If an invention is "revolutionary" (e.g. linked to the "memory of water"), reversing this burden of proof may be justified if the claimed invention's feasibility and reproducibility does not appear sufficiently plausible on the basis of the application. Doubts might arise for example merely because a technical effect that is **a priori contrary to the laws of physics** is not adequately substantiated by experimental results.

In T.518/10 the appellant (patent proprietor) argued that the burden of proof that an extract comprising compound (II) could be obtained from aquatic or marine biomass, in particular krill, did not shift to the appellant. The patent in suit provided at least one way as to how such an extract could be obtained. Furthermore, the extraction of compound (II) from krill was not against the laws of physics as argued by the respondents (opponents). The board was not convinced and stated that in the present case, assertion of the appellant was against the prevailing technical opinion. The respondents provided evidence that compound (II) could not be obtained when working according to the general method described in the patent. By their experimental reports, the respondents conclusively showed that, by following the extraction method described in the patent in suit, it was not possible for the skilled person to obtain the claimed extract comprising compound (II). Since this fact was neither disproved by documents filed by the appellant nor refuted by the appellant's counter-arguments, the board concluded that the ground of Art. 100(b) EPC was made out.

- j) Adverse effect of a reversal of the burden of proof cited in support of a request for review

In R.21/10 the Enlarged Board ruled that a board's alleged reversal of the burden of proof is not a ground for review, these being exhaustively listed in Art.112a(2)(a) to (e) and R.104 and 105 EPC. It found that, in any event, the technical board concerned – far from reversing the burden of proof – had merely applied the rule that each party bears the burden of proving the facts it asserts.

5.2.3 Cases in which the burden of proof was not reversed

In T.954/93 the appellant (opponent) had put forward objections to the patent on the basis of lack of novelty, which would have had to be demonstrated by means of experiments. It had not, however, carried out any tests on the ground that they would have been very expensive. The board considered the allegation unproven and refused to reverse the burden of proof. The fact that experiments would have been very expensive did not shift the burden of proof onto the patent proprietor.

In T.453/04 the opposition had been rejected, i.e. the grounds alleged pursuant to Art.100 EPC had been found not to be substantiated. The board referred to the previous case law in T.667/94 according to which, in such cases, the burden of showing that the decision of the opposition division was incorrect remained with the appellant (opponent). The burden is not automatically shifted to the proprietor to show on appeal that the reasons for maintaining the patent were justified was not automatically shifted to the proprietor.

According to T.499/00, the burden of proof could not be reversed to rest with the patentee in cases where – as opposed to the situation in T.585/92 – the patent had been revoked by the opposition division not on the strength of a real failure to disclose the information needed to reproduce the claimed subject-matter, but for reasons that the board elsewhere deemed erroneous.

T.55/18 is an example of a decision in which the parties were in dispute over whether the burden of proof had been shifted. The opposition division had placed the burden of proof on the patent proprietor but failed to explain in the reasons for its decision, which it had based on that allocation of the burden of proof, why it had not followed the applicable principles established in the established case law. Its decision was incorrect for that reason alone. Furthermore, the board was of the opinion that the objection raised by the respondent (opponent) had not been substantiated by verifiable facts, meaning that the respondent had failed to discharge its burden of proof. The fact that the appellant (patent proprietor) had filed two pixelated and fuzzy photos during the oral proceedings before the opposition division could not in itself relieve the respondent (opponent) of its burden of proof. There had thus been no shift of the burden of proof in T.55/18.